

IN THE SUPREME COURT OF PAKISTAN
(Review Jurisdiction)

PRESENT:

MR. JUSTICE IFTIKHAR MUHAMMAD CHAUDHRY, HCJ
MR. JUSTICE JAVED IQBAL
MR. JUSTICE MIAN SHAKIRULLAH JAN
MR. JUSTICE TASSADUQ HUSSAIN JILLANI
MR. JUSTICE NASIR-UL-MULK
MR. JUSTICE RAJA FAYYAZ AHMED
MR. JUSTICE MUHAMMAD SAIR ALI
MR. JUSTICE MAHMOOD AKHTAR SHAHID SIDDIQUI
MR. JUSTICE JAWWAD S. KHAWAJA
MR. JUSTICE ANWAR ZAHEER JAMALI
MR. JUSTICE KHILJI ARIF HUSSAIN
MR. JUSTICE TARIQ PARVEZ
MR. JUSTICE MIAN SAQIB NISAR
MR. JUSTICE ASIF SAEED KHAN KHOSA
Mr. JUSTICE SARMAD JALAL OSMANY
MR. JUSTICE AMIR HANI MUSLIM
MR. JUSTICE GHULAM RABBANI

CIVIL REVIEW PETITION NO. 129/2010 IN CONST. P. NO. 76/2007
& CIVIL REVIEW PETITION NO. 199/2010 IN CMA No. 2922/2010 IN
C.R.P. NO. 129/2010 IN CONST. P. No. 76/2007

The Federation of Pakistan through Secy. M/o Law, Justice and
Parliamentary Affairs, Islamabad v. Dr. Mubashir Hassan, etc

C.M.A.100 & 101/2010 in
C.R.P.Nil/2010 in Const.P.76/2007

Malik Muhammad Qayyum v. The Federation of Pakistan, etc

C.M.A.246 & 247/2010 in
C.R.P.Nil/2010 in Const.P.76/2007

Abdul Baseer Qureshi v. Mubashir Hussain, etc

C.M.A.248 & 249/2010 in
C.R.P.Nil/2009 in Const.P.76/2007

Naveed Ahsan v. Dr. Mubashir Hassan, etc

C.M. Appeal 14/2010 in
C.M.A.Nil/2010 in Const.P.76/2007

Malik Muhammad Qayyum v. Federation of Pakistan

C.M. Appeal 77/2010 in
C.M.A.Nil/2010 in Const.P.76/2007

Dr. Danishwar Malik v. The Federation of Pakistan & others

For the petitioner: (CRP 129/2010)	Mr. Kamal Azfar, Sr. ASC Raja Abdul Ghafoor, AOR
For the petitioner: (CRP 199/2010)	Raja Abdul Ghafoor, AOR
For the applicant/appellant: (CMA 100 & 101 & CM Appeal 14/2010)	Mr. Wasim Sajjad, Sr. ASC Mr. Arshad Ali Chaudhry, AOR
For the applicant/appellant: (CMA 246, 247, 248 & 249/2010)	Mr. Abdul Baseer Qureshi, ASC Ch. Akhtar Ali, AOR (absent)
For the applicant/appellant: (CM Appeal 77/2010)	Dr. Khalid Ranjha, Sr. ASC Mr. Faiz-ur-Rehman, AOR (absent)
On Court notice:	Maulvi Anwarul Haq Attorney General for Pakistan
For the respondent No. 1: (CRP 129/2010)	Mr. Mehr Khan Malkik, AOR
Date of hearing:	11.04.2011

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ORDERIFTIKHAR MUHAMMAD CHAUDHRY, CJ. –CIVIL REVIEW PETITION NO. 199 OF 2010:

The learned AOR for the petitioner does not press this review petition. Dismissed.

CIVIL REVIEW PETITION NO. 129 OF 2010:

2. Mr. Kamal Azfar, Sr. ASC read out a written statement (not filed in Court) and stated that though it was always a privilege to appear and assist the apex Court, but in the instant case, the Federation of Pakistan had taken away brief from him, and instructed Dr. Khalid Ranjha to appear and argue the case. It was pointed out to him that in his letter dated 30th October, 2010, after having tendered resignation from the post of Advisor to the Prime Minister against which he was appointed a day or so before the hearing of the petition fixed on 13th October, 2010, he had stated that he was available to argue the case. The contents of the letter are reproduced below: -

“This has reference to your letter dated 29 October 2010 Ref: C.R.P. No. 129 of 2010 SCJ.

I have subsequently resigned on 19th October 2010 by letter addressed to the President of Pakistan and also informed the Pakistan Bar Council by the letter dated 27 October 2010.

Copies of my resignation to the president of Pakistan and the letter to the Pakistan Bar Council are attached.

I hope this clarifies the position that acceptance of resignation is not necessary in this case.”

As has been observed in the case of Hafiz Hamdullah V/s Saifullah Khan, Karachi PLD 2007 Supreme Court 52 at page 67: “The authority to whom the act of relinquishment is communicated is not required to take any action and the relinquishment takes effect from the date of such communication where the resignation is intended to operate in presenti.

I hope this clarifies the position that acceptance of resignation is not necessary in this case.”

3. In the above background, we have pointed out to Mr. Kamal Azfar, learned Sr. ASC that in the light of the order dated 5th April, 2011 passed by one of us (Iftikhar Muhammad Chaudhry, CJ) in Chambers, his presence would be appreciated as being the lead counsel he has to appear in the Court. Therefore, no one else on his behalf can be allowed to argue the case at this stage, as in terms of Order XXVI rule 6 of the Supreme Court Rules, 1980, no unavoidable circumstances exist for exercising such power. Even otherwise, as is apparent from the cases reported as Muhammad Younas v. State (PLD 2005 SC 93), Mukhtar Ahmad v. State (PLD 2003 SC 126), Feroze Din v. Sardar Muhammad (2002 SCMR 1993), H. Malik Amanullah v. Khyber Khan (2008 SCMR 1723) as well as the recent order dated 1st April, 2011 passed in Civil Review Petition No. 46 of 2011 in Constitution Petition No. 10 of 2011 etc., this Court has always discouraged substitution of counsel except in unavoidable circumstances, therefore, permission to substitute counsel at this

stage, that too subject to law, cannot be granted. On this, he prayed for a short adjournment to seek instructions. Accordingly, we re-assembled at 11.30 a.m. He stated that some more time be given to him so that he may contact the competent authority. In the interest of justice, we adjourn this case for 12.04.2011.

IFTIKHAR MUHAMMAD CHAUDHRY, CJ.

JAVED IQBAL, J.

MIAN SHAKIRULLAH JAN, J.

TASSADUQ HUSSAIN JILLANI, J.

NASIR-UL-MULK, J.

RAJA FAYYAZ AHMED, J.

MUHAMMAD SAIR ALI, J.

MAHMOOD AKHTAR SHAHID SIDDIQUI, J.

JAWWAD S. KHAWAJA, J.

ANWAR ZAHEER JAMALI, J.

KHILJI ARIF HUSSAIN, J.

TARIQ PARVEZ, J.

MIAN SAQIB NISAR, J.

ASIF SAEED KHAN KHOSA, J.

SARMAD JALAL OSMANY, J.

AMIR HANI MUSLIM, J.

GHULAM RABBANI, J.

Islamabad.

April 11, 2011

APPROVED FOR REPORTING